

**CV-26-001417 KUMAR, SUSHMA vs A&M ADMINISTRATION LLC -
Defendant A&M Administration, LLC's Motion to Compel Arbitration and to
Stay Civil Action - DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court finds that Defendant has failed to demonstrate the existence of an agreement to arbitrate in this instance. (Code Civ. Proc. § 1281.2.) Despite the subject document's singular use of the term "arbitrate" in the heading of the section relied on herein, the substantive provisions fail to describe an arbitration proceeding as recognized by California law. (See, e.g., Cheng-Canindin v. Renaissance Hotel Associates (1996) 50 Cal.App.4th 676, 684–685.) Therefore, the Court cannot conclude that Plaintiff voluntarily assented to binding arbitration of her claims herein as a substitute for litigation.

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Therefore, the Court cannot conclude that Plaintiff voluntarily assented to binding arbitration of her claims herein as a substitute for litigation.